

## 23STCV01739 23STCV01739

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-21

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Case Number: 23STCV01739 Hearing Date: July 21, 2026 Dept: 732

Alexander Montoya v. Philly Auto, Inc., et al.

Tuesday, July 21, 2026

CASE NUMBER: 23STCV01739

UNOPPOSED

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Plaintiff

Alexander Montoya's Motion to Compel Responses to Special Interrogatories from  
Defendant Philly Auto Inc..

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Facts:

This is an action for fraud and breach of warranty. The First Amended Complaint alleges as follows. Plaintiff Alexander Montoya ("Plaintiff") purchased a 2020 Mercedes Benz A35 AMG from Defendant Philly Auto, Inc. based on express representations and warranties that the vehicle was being repaired to be in good condition for its eventual buyer. (FAC ¶¶ 9–11.) The vehicle contained or developed substantial defects contrary to the dealer's representations, and they have been unable to fix the vehicle. (FAC ¶¶ 13–15.)

Procedural History: Plaintiff

filed the original Complaint on January 26, 2023, and filed the FAC on July 28, 2023, alleging eight causes of action:

1.

## Consumer Legal Remedies Act

2.

Intentional Misrepresentation

3.

Negligent Misrepresentation

4.

Breach of Express Warranty

5.

Failure to Promptly Repurchase

6.

Breach of Implied Warranty of Merchantability

7.

Unfair Competition

8.

Vehicle Code § 11711

Plaintiff

filed the present motion to compel responses to special interrogatories from Defendant Philly Auto on May 26, 2026. No opposition has been filed.

Analysis

I.

MOTION TO  
COMPEL

A propounding party may demand a responding party to produce documents that are in their possession, custody or control. (Code Civ. Proc., § 2031.010.) A party may likewise conduct discovery by propounding interrogatories to another party to be answered under oath. (Code Civ. Proc. § 2030.010, subd. (a).) The responding party must respond to the production demand either by complying, by representing that the party lacks the ability to comply, or by objecting to the demand. (Code Civ. Proc., §

2031.210.) The responding party must respond to the interrogatories by answering or objecting. (Code Civ. Proc. § 2030.210, subd. (a).) If the responding party fails to serve timely responses, the propounding party may move for an order compelling responses to the production demand and interrogatories. (Code Civ. Proc., §§ 2030.290, 2031.300.)

A

party who fails to serve a timely response to interrogatories or a demand for inspection waives any objection to the demand. (Code Civ. Proc., §§ 2030.290, 2031.300.)

Plaintiff Alexander Montoya ("Plaintiff") moves to compel responses to special interrogatories from Defendant Philly Auto, Inc. ("Defendant"). Plaintiff presents evidence that interrogatories were served on April 7, 2026, with responses due by May 11, 2026. (Savage Decl. ¶ 2.) Defendant has not served responses despite Plaintiff's efforts to meet and confer. (Savage Decl. ¶¶ 3–5.)

Plaintiff has demonstrated that Defendant has failed to serve responses to duly served discovery. The motion is GRANTED. Defendant shall serve responses to the interrogatories, without objections, within 20 days of this order.

Superior Court of California

County of Los Angeles

Department 732

alexander  
montoya,

Plaintiff

v.

PHILLY AUTO, INC., et al.,

Defendants.

Case No.:

23STCV01739

Hearing Date: July 21, 2026

[TENTATIVE] RULING RE:

Plaintiff

Alexander Montoya's Motion to Compel Responses to Special Interrogatories  
from Defendant Philly Auto Inc..

Plaintiff

Alexander Montoya's Motion to Compel Responses to Special Interrogatories from  
Defendant Philly Auto Inc. is GRANTED. Defendant shall serve responses to the  
interrogatories, without objections, within 20 days of this order..

Plaintiff to give notice.

Dated: July 21, 2026

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Hon.

Richard S. Kemalyan

Judge

of the Superior Court